

Motions to strike can be used to attack the entire pleading, or any part thereof, i.e., even single words or phrases. (CCP § 435; *Baral v. Schnitt* (2016) 1 Cal.5th 376, 393-394; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matter which the court may judicially notice. (CCP § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Superior Court* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

Plaintiffs agreed to remove the Jonathan Swift quote. This leaves the sentence from the complaint’s “Summary of Action” that reads, “Simply put, the Defendants’ actions are motivated by nothing more than pure greed and avarice.” (Complaint, p. 3:10-11.)

“Irrelevant matter” includes allegations not essential to a claim or defense, allegations that are neither pertinent to nor supported by an otherwise sufficient claim or defense, or a demand for judgment requesting relief not supported by the allegations of the complaint. (CCP § 431.10(b).)

Plaintiffs state the sentence at issue “...explains Plaintiffs’ theory of why Defendants repudiated the [Purchase Agreement] after accepting Plaintiffs performance for over a dozen years.” Plaintiffs go on to argue this “motive” provides context.

Plaintiffs fail to identify what claim or cause of action the statement is essential to and there are no causes of action currently alleged that require malice or the like under which such a statement would be relevant.

Motion to Strike “Simply put, the Defendants’ actions are motivated by nothing more than pure greed and avarice.” Is GRANTED.

Motion to Strike the quote from Jonathan Swift “There is no vice which humankind carries to such wild extremes as that of avarice” is MOOT.

4.

CASE #	CASE NAME	HEARING NAME
PSC2004209	QUINTANA VS OXYGEN HOSPITALITY GROUP INC	MOTION TO LIFT BANKRUPTCY STAY AND RESUME SUPERIOR COURT PROCEEDINGS BY OXYGEN HOSPITALITY GROUP INC.

Tentative Ruling:

No opposition filed.

Defendant’s Motion to Lift Bankruptcy Stay and Resume Superior Court Proceedings GRANTED.

Case Management Conference scheduled for 9.10.26.

The parties are ordered to file with the Court ten days in advance of the CMC a joint declaration of counsel addressing their efforts to meet and confer in accord with Local Rule 3218 and Rules of Court, 3.724. The declaration should specifically address whether the parties have agreed upon a discovery timeline, and if so what that timeline is, and what form of alternative dispute resolution the parties believe is appropriate in

this case. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

Counsel are also directed to calculate the 5 year deadline pursuant to CCP 583.340.